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ARVA RICE
INTERIM CHAIR

November 15, 2023

The Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case No. 202003710 (Incident Date: May 30, 2020) involving Police Officer Daniel Alvarez, Tax No. 964372 (DADS No. 2022-25361)

Dear Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated November 6, 2023. Pursuant to Paragraph 6 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Marino’s notification.

Deputy Chief Marino stated that after reviewing the trial decision and memorandum by Deputy Commissioner Maldonado, you have determined that you disapprove of Deputy Commissioner Maldonado’s guilty finding and penalty recommendation as to Police Officer Alvarez, and that you intend to find Police Officer Alvarez not guilty and impose no disciplinary action. We disagree with your determination that Police Officer Alvarez’s conduct did not constitute a wrongful use of force.

The evidence in this case clearly established that on May 30, 2020, Police Officer Alvarez intentionally drove his vehicle in the direction of protestors and continued doing so even when it became clear to Police Officer Alvarez that the protestors were not moving out of the way of his vehicle. While during the trial Police Officer Alvarez initially testified that he drove his vehicle at a “gap” in the crowd (Transcript 113-114), he subsequently acknowledged that CCRB Exhibit 1, a video that captured the incident, did not show *any* moment where there existed a gap in the crowd wide enough for his vehicle to pass without striking protestors (Transcript 122-131). As Deputy Commissioner Maldonado stated in her Decision, “Respondent Alvarez knew that protestors were in his direct path but did not stop his vehicle even when his assumption that they would move did not materialize.” (Draft Decision, 14). In doing so, Deputy Commissioner Maldonado concluded, Police Officer Alvarez “violated the most basic

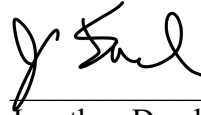
standard of care expected of drivers on the road.” (Draft Decision, 14). While it was undoubtedly true that the protestors were acting unlawfully in blocking the roadway, this did not absolve Police Officer Alvarez of “the responsibility to exercise due care.” (Draft Decision, 14). While it is the case that civilians have an obligation to move out of the way of police vehicles whose lights and sirens have been activated, and it is furthermore true that emergency vehicles enjoy certain privileges, those privileges “do not attach when, as here, the operator unreasonably chooses to disregard significant risks to others.” (Draft Decision 14)

Furthermore, the evidence established that Police Officer Alvarez failed to stop even *after* he struck multiple civilians with his vehicle. CCRB Exhibit 1 clearly shows Police Officer Alvarez’s vehicle make contact with numerous civilians as he drove through the crowd. As Deputy Commissioner Maldonado stated in her decision, “when Respondent Alvarez failed to stop, before and after it became obvious that he was pushing individuals with the RMP, he violated the most basic standard of care expected of drivers on the road.” (Draft Decision, 14). In doing so, Police Officer Alvarez “chose to use an RMP as a weapon that propelled unruly protestors out of his way.” (Draft Decision, 15). Deputy Commissioner Maldonado concluded that given “the immediate, foreseeable, and potentially fatal consequences of driving a vehicle into pedestrians, Respondent Alvarez’s choice to use this type of force was excessive and unjustified.” (Draft Decision, 15). In short, the evidence at trial, including Police Officer Alvarez’s own testimony, clearly established that Police Officer Alvarez intentionally drove his vehicle at protestors even when it was clear that in doing so, he would strike the protestors, and continued driving even after he had struck multiple protestors.

In her decision, Deputy Commissioner Maldonado acknowledged the “difficult and uncertain situation” that Police Officer Alvarez faced that day (Draft Decision, 12). Her decision took into account the undoubted risk faced by Police Officer Alvarez and his partner, as they faced a hostile crowd (Draft Decision 15). However, even in situations such as this, a police officer’s use of force “must be both reasonable and proportional to the threat faced by the officer.” (Draft Decision, 15). Even acknowledging the difficult situation that the officers faced, “Respondent Alvarez’s intentional use of the RMP to purposely hit and push unarmed protestors was patently unreasonable and grossly disproportionate to the threat that he faced.” (Draft Decision, 15). Police Officer Alvarez’s use of his vehicle in a manner that risked potentially fatal consequences to numerous protestors was not reasonable or proportionate, and Deputy Commissioner Maldonado was correct to find him guilty of the charge of the wrongful use of force.

The CCRB would ask the Police Commissioner to approve Deputy Commissioner Maldonado's findings of guilt on Specification One, and impose upon Police Officer Alvarez the penalty of the forfeiture of forty (40) vacation days in addition to the imposition of one year of Dismissal Probation.

Respectfully submitted,

A handwritten signature in black ink, appearing to read 'J. Darche', written over a horizontal line.

Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board